

FILED
Superior Court of California
County of Los Angeles

JULY 28, 2026

David W. Slayton, Executive Officer/Clerk of Court

By: R. Mina, Deputy

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF LOS ANGELES**

ORDER REGARDING CODE OF CIVIL PROCEDURE
SECTION 170.6 CHALLENGES

GENERAL ORDER

This order sets forth the procedure for promptly determining whether a Code of Civil Procedure section 170.6 challenge constitutes a bad faith blanket challenge under *J.O. v. Superior Court* (2026) 19 Cal.5th 753, 589 P.3d 822. (“*J.O.*”).

(1) Definitions:

- a.** “Attorney” means any lawyer, law firm, or legal office, government agency, public defender, prosecutor, institutional legal department, or other authorized legal representative that provides legal advice or representation to a party in a legal matter or court action;
- b.** “Challenged judge” means the judge against whom a Section 170.6 challenge is directed;
- c.** “Objection” means an objection pursuant to *J.O.* that a Section 170.6 challenge is made pursuant to a bad faith blanket policy;
- d.** “Party” means any named person, organization, business, or government entity that is directly involved in the lawsuit and whose legal rights or obligations may be determined by the Court;
- e.** “Section 170.6 challenge” means a motion filed or orally made pursuant to Code of Civil Procedure section 170.6.

(2) Verified Written Declaration or Oral Attestation Under Penalty of Perjury

Required: Code of Civil Procedure section 170.6 states that any party or attorney can compel the disqualification of a judge simply by signing an affidavit or orally stating under oath that the judge is “prejudiced” against the party, attorney, or their respective interests. If the motion is timely and properly presented, the disqualification is automatic and a new judge must be assigned without any judicial inquiry into the veracity of the affidavit or oral statement.

The Supreme Court of California has observed that, since the enactment of Section 170.6, “reports of its abuse have been well chronicled” and invoked for the purposes of judge shopping; to delay proceedings; to disqualify a judge based on the judge’s views on the law or on the exercise of judicial discretion, or the judge’s personality traits; to intimidate, punish, and/or silence a judge for an adverse ruling and warn other judges not to rule similarly; or even as a vehicle for racial discrimination. (See *J.O.*, supra, 19 Cal.5th 753 at p. 761, 589 P.3d at p. 827 (“*J.O.*”).)

These problems are particularly pronounced when Section 170.6 challenges are improperly lodged in a blanket fashion where a party engages in the practice of removing a judge from all cases or a substantial portion of cases on a bad faith basis, or all cases or a substantial portion of cases of a particular type. (See *id.*, 19 Cal. 5th at p. 753, 589 P.3d at pp. 827-828.) When Section 170.6 is abused to challenge a particular judge in all or a substantial portion of the judge’s assigned cases, or all or a substantial portion of cases of a particular type, without a good faith belief in the judge's prejudice, such abuse of the statute materially impairs judicial operations. (*Id.* at 19 Cal. 5th at p. 780, 589 P.3d at p. 839.)

The California Supreme Court has identified factors that may establish that a Section 170.6 challenge proponent is lodging bad faith blanket challenges against a particular judge, as opposed to a good faith belief that the judge is prejudiced in a specific case, including, but not limited to: (1) The party has lodged persistent strikes against the same judge “in all or a substantial portion of cases assigned to that judge,” or “all or a substantial portion of cases of a particular type;” (2) an uptick in Section 170.6 challenges following an adverse ruling; or (3) an explicit blanket challenge policy.

To assist the Court and any interested party in promptly determining whether a Section 170.6 challenge constitutes a bad faith blanket challenge, the Court orders that any party or attorney who makes a Section 170.6 challenge shall provide a verified written declaration or oral attestation under penalty of perjury as described in this order. The declaration or attestation is for informational purposes to assist the Court in making a prompt determination only and does not affect a timely and otherwise proper Section 170.6 challenge. Any enforcement for failure to comply is limited to lawful sanctions for violating a court order, not denial of the challenge itself. The failure to comply with this order is a fact that may be considered by the Court in the determination of any objection.

- (3) Contents of Verified Written Declaration or Oral Attestation Under Penalty of Perjury:** The written declaration or oral attestation shall include: (1) the case name and case number of all cases in which that party has made a section 170.6 challenge to the challenged judge within the previous year, together with a reasonable approximation of the total number of cases that party has had assigned to the challenged judge within the previous year; and (2) for parties represented by an attorney, the case name and case number of all cases in which the attorney has made a section 170.6 challenge to the challenged judge within the previous year, together

with a reasonable approximation of the total number of cases that attorney has had assigned to the challenged judge within the previous year. For confidential and/or sealed cases, only the case number is required.

- (4) **Exemption:** Any party and any attorney that has filed two or fewer Section 170.6 challenges against the challenged judge in the preceding year is exempt from the requirements of this General Order.
- (5) **Time to Make Verified Written Declaration or Oral Attestation Under Penalty of Perjury:** The written declaration or oral attestation shall be provided contemporaneously with the making of the Section 170.6 challenge, unless the Court finds good cause to extend this deadline, in which case a written declaration complying with this order shall be filed and served not later than the end of the next court day.
- (6) **Service Requirements for Verified Written Declaration or Oral Attestation Under Penalty of Perjury:** Pursuant to subdivision (a)(3) of Section 170.6, the party or attorney making the 170.6 challenge shall serve notice of the Section 170.6 challenge on all parties together with the declaration complying with this order as soon as practicable, but no later than five days after making the Section 170.6 challenge. If all parties to the action or their attorney are present in court when an oral challenge is made, no further service shall be necessary.
- (7) **Time to Make Objection:** Any objection shall be made within a reasonable time of notice of the Section 170.6 challenge.

IT IS SO ORDERED.

Dated: July 28, 2026




 SERGIO C. TAPIA II
 Presiding Judge